

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: September 1, 2026 TIME: 9:00 A.M. and 9:01 A.M.

To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

FOR APPEARANCES: Department 1 is fully open for in-person hearings. The Court strongly prefers **in-person** appearances for all contested law and motion matters. For all other hearings, appearances must be **in-person or by video**. Department 1 uses Unicorn Digital Courtroom (UDC) platform. Please click on this link if you need to appear remotely and then scroll down to the link for Department 1: <https://santaclara.courts.ca.gov/online-services/remote-hearings>. This system requires advance registration with a case number and hearing date. **Telephonic appearances are prohibited, unless permitted by the Court.** (Local Rule 5). If you must appear virtually, you must use video.

SCHEDULING MOTION HEARINGS: Please go to <https://reservations.scscourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri). to reserve a hearing date for your motion before you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

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RECORDING IS PROHIBITED: As a reminder, most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

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LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
<u>LINE 1</u>	23CV411676	Brian Claire vs Manuel Groto et al	Motion to Set Aside Default/Judgment Scroll down to Line 1 for Tentative Ruling.
<u>LINE 2</u>	24CV430173	Lee (aka Lit) Leong vs Ashley A. Lopez	Motion to Quash OFF CALENDAR. On March 26, 2026 the parties notified the court of a settlement agreement.
<u>LINE 3</u>	24CV438701	James Bodwin vs Persimmons, Inc.	Motion for Sanctions Scroll down to Line 3 for Tentative Ruling.
<u>LINE 4</u>	25CV456187	Curtis Edwad McGovert vs Q2 Fiber Communic- ations Inc. et al	Motion to Compel Responses to Form Interrogatories, Special Interrogatories, Request for Production of Document, and Sanctions Scroll down to Line 4 for Tentative Ruling.
<u>LINE 5</u>	25CV462288	Kourosh Zahedi et al vs Volkswagen Group of America, Inc. et al	Motion Judgment on the Pleadings Scroll down to Line 5 for Tentative Ruling.
<u>LINE 6</u>	25CV473786	Jane Doe 1 vs Rafael Ramirez et al	Motion for Change of Venue Scroll down to Line 6 for Tentative Ruling.
<u>LINE 7</u>	25CV474250	Adelita Mendez Gonzalez vs Costco Wholesale Corpor- ation et al	Motion to Disqualify Plaintiff's Law Firm Scroll down to Line 7 for Tentative Ruling.
<u>LINE 8</u>	25CV477635	Mid-Century Insurance Company vs Justin Collins	Motion to Compel Responses to Request for Production of Documents, and Sanctions Scroll down to Line 8 for Tentative Ruling.
<u>LINE 9</u>	25CV480281	Salvador Ortiz vs General Motors LLC	Motion for Attorneys' Fees and Costs Scroll down to Line 9 for Tentative Ruling.

9:00 A.M.

Calendar Line # 1

Case Name Brian Claire vs Manuel Groto et al

Case No. 23CV411676

Motion to Set Aside Default/Judgment

I. BACKGROUND

A. BRIEF FACTUAL BACKGROUND

On February 14, 2023, Plaintiff Brian Claire filed a Complaint alleging eight causes of actions arising from a wrongful eviction case against Xin Huang aka Thomas Huang, Manuel Groto, Joe Paigly, Mark Dehart, Tanya Demaria, and DOES 1 through 20 (collectively “Defendants”).

B. RELEVANT PROCEDURAL BACKGROUND

On April 15, 2024, Plaintiff filed an entry of default against Defendant Xin Huang aka Thomas Huang (“Huang”). On March 19, 2025, Plaintiff filed a Court Judgment for default against Defendant Huang for \$292,405.25 that was not entered as no judgment was provided. Defendant Huang filed an opposition to the entry of judgment on March 21, 2025. Plaintiff resubmitted a default judgment on May 1, 2025 and on November 18, 2025 filed an application for default judgment. The Honorable Roberta Hayashi took the matter under submission on November 24, 2025, and on December 12, 2025, ordered default judgment in the total amount of \$195,103.39 in favor of the Plaintiff and against Defendant Huang.

On March 10, 2026, Defendant Huang filed a motion to set aside and vacate the default judgment entered against him on April 15, 2024. On September 11, 2025, the Honorable Shella Deen denied the motion as untimely and failure to meet his burden. Defendant Huang then filed a motion for reconsideration that was continued July 13, 2026 at 1:30 p.m. in Department 18. After the hearing, the Honorable Shella Deen denied Defendant Huang’s motion for reconsideration.

C. PRESENT MOTION

On July 21, 2026, Defendant Huang filed another motion to set aside and vacate the default judgment. The motion was accompanied by a proof of service indicating electronic mail service to Plaintiff’s counsel on that same day.

Plaintiff opposes the motion and filed opposition papers on August 19, 2026.

On August 25, 2026, Defendant Huang filed a reply to Plaintiff’s opposition.

The Court has carefully reviewed the following: Defendant Huang’s motion, including a notice, Declaration of Thomas Huang, and memorandum of points and authorities (totaling 16 pages); Defendant Huang’s Index of Exhibits and attached Exhibits A- J (totaling 49 pages); Plaintiff’s opposition (totaling 10 pages); Defendant’s reply brief titled “opposition to plaintiff attorney’s memorandum of points and authorities filed on 8/19/2026” (totaling 6 pages); proof of service; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 1008, a non-prevailing party may make a motion to reconsider and enter a different order under the following conditions: (1) brought before the same judge that made the order sought to be reconsidered; (2) made within 10 days after service upon the party of the notice of entry of the order (extended under Code of Civ. Proc., § 1013 for type of service); (3) based on new or different facts, circumstances

or law than those before the court at the time of the original ruling; (4) supported by a declaration stating the previous order, by which judge it was made, and the new or different facts, circumstances or law claimed to exist; and (5) the motion must be made and decided before entry of judgment. (Code of Civ. Proc., § 1008).

A motion for reconsideration must be made to the same judge. (Code of Civ. Proc., § 1008(a)). “A trial court’s discretion to reconsider another judge’s prior ruling is necessarily narrow and usually only appropriate when the prior judge is unavailable.” (*Marriage of Oliverez* (2015) 238 Cal.App.4th 1242, 1247). “[O]ne trial court judge may not reconsider and overrule a ruling by another trial court judge, unless the first judge is unavailable.” (*Davcon, Inc. v. Roberts & Morgan* (2003) 110 Cal.App.4th 1355, 1361).

“To be entitled to reconsideration, a party should show that (1) evidence of new or different facts exist, and (2) the party has a satisfactory explanation for failing to produce such evidence at an earlier time.” (*Mink v. Superior Court* (1992) 2 Cal.App.4th 1338, 1342). The moving party must demonstrate that such newly discovered evidence could not, with reasonable diligence, have previously discovered and produced. (*Wilcox v. Ford* (1988) 206 Cal.App.3d 1170). The legislature intended to restrict motions for reconsideration to circumstances where a party offers the court some fact or circumstance not previously considered and some valid reason for not offering it earlier. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500).

“No application to reconsider any order or for the renewal of a previous motion may be considered by any judge or court unless made according to this section.” (Code of Civ. Proc., § 1008(e)); see also, *Powell v. County of Orange* (2011) 197 Cal.App.4th 1573, 1577 [“The name of a motion is not controlling, and, regardless of the name, a motion asking the trial court to decide the same matter previously ruled on is a motion for reconsideration under Code of Civil Procedure section 1008.”]]. Therefore, the moving party must comply with the requirements of section 1008, regardless of the title of the noticed motion.

Reconsideration cannot be granted based on claims the court misinterpreted the law in its initial ruling because this is not a “new” or “different” matter. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500).

III. ANALYSIS

Here, Defendant Huang fails to comply with Code of Civil Procedure section 1008, which sets forth the procedures for setting up a motion for reconsideration. On July 13, 2026, the Honorable Shella Deen heard and denied the motion for reconsideration. This stems from Judge Deen’s September 11, 2025 order, denying Defendant Huang’s motion to set aside and vacate the default judgment under Code of Civil Procedure 473(b) et al. Code of Civil Procedure requires that this motion be brought before the same judge that made the order sought to be reconsidered (Code of Civ. Proc., § 1008). Defendant Huang does not offer any new or different facts or circumstances that support a rehearing of the issue. Defendant Huang was afforded multiple opportunities to explain this request.

IV. CONCLUSION

Based on the foregoing, the motion for reconsideration is DENIED.

The Court will prepare the formal Order.

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Calendar Line # 3
Case Name James Bodwin vs Persimmons, Inc. et al
Case No. 24CV438701
Motion for Sanctions I. <u>BACKGROUND</u> A. BRIEF FACTUAL BACKGROUND On May 9, 2024, Plaintiff/Cross-Defendants James Bodwin (“Bodwin”) filed a Complaint against Defendants/ Cross-Complainants Valerie Chan, Eugene Feinberg, and Persimmons, Inc. (collectively “Defendants/ Cross-Complainants”) asserting thirteen causes of actions: (1) Breach of Contract [against defendant Persimmons]; (2) Fraudulent Inducement; (3) Wrongful Termination in Violation of Labor Code §1102.5; (4) Retaliation and Wrongful Termination in Violation of Public Policy; (5) Negligent Misrepresentation; (6) Breach of Fiduciary Duty; (7) Aiding and Abetting Breach of Fiduciary Duty; (8) Breach of Loyalty; (9) Unjust Enrichment; (10) Accounting; (11) Fraud; (12) Unfair Business Practices in Violation of Bus. & Prof. Code §17200 et seq.; and (13) Declaratory and Injunctive Relief. B. RELEVANT PROCEDURAL BACKGROUND On November 10, 2025, Defendant Persimmons filed a motion for judgment on the pleadings directed at the first cause of action, breach of contract. On May 5, 2026, after hearing the motion, the court denied Defendant Permissions motion for judgment on the pleadings. On April 10, 2026 Defendants filed a motion for summary judgment that was heard on July 2, 2026 before the Honorable Socrates Manoukian. After the hearing, the court took the matter under submission. On July 7, 2026, Judge Manoukian issued an order granting Defendant’s motion for summary adjudication of the first, sixth, seventh, and eight causes of action, and denying motion for summary adjudication of the second, fifth, eleventh, and thirteenth causes of action. C. PRESENT MOTION Before the court is Defendant/ Cross-Complainant Persimmons motion seeking sanctions against Plaintiff/Cross-Defendant Bodwin and Plaintiff’s counsel under Code of Civil Procedure section 128.7, for refusing to dismiss the first cause of action, breach of contract. The motion was filed on December 19, 2025. The motion was accompanied by a proof of service indicating electronic service. Notice is proper. Plaintiff filed an Opposition on August 19, 2026. Defendant Persimmons filed a reply brief on August 25, 2026. The Court has carefully reviewed the following: Defendant Persimmons’ notice of motion and memorandum of points and authorities (totaling 15 pages); Declaration of Valerie Chan and attached Exhibits 1-3 (totaling 52 pages); Declaration of John D. Pernick (totaling 2 pages); Plaintiff’s Opposition (totaling 18 pages); Declaration of Micah Jones in support of Plaintiff’s Opposition (totaling 9 pages); Defendant’s Reply brief (totaling 19 pages); proofs of services; and the pleadings. II. <u>LEGAL STANDARD</u> A. CODE OF CIVIL PROCEDURE SECTION 128.7 Pursuant to Code of Civil Procedure section 128.7, a court may impose sanctions on a party or attorney that presents a pleading, petition, motion, or other similar papers in the following circumstances: (1) The document is presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation.

- (2) The claims, defenses, and other legal contentions therein are not warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law.
- (3) The allegations and other factual contentions have no evidentiary support.
- (4) The denials of factual contentions are not warranted on the evidence.

Under section 128.7, the court may impose monetary sanctions on an attorney or unrepresented party that violates any one of the requirements set forth above. (Code of Civ. Proc., §128.7; *Eichenbaum v. Alon* (2003) 106 Cal App 4th 967, 976). The standard set forth under 128.7 is that the Court find the conduct to be **objectively unreasonable**, and does not require a finding of subjective bad faith. (*In re Marriage of Reese & Guy* (1999) 73 Cal. App. 4th 1214, 1221).

A court **may** impose sanctions if it concludes a pleading was filed for an improper purpose or was indisputably without merit, either legally or factually. (Code of Civ. Proc., §128.7; *Bucur v. Ahmad* (2016) 244 Cal.App.4th 175, 189–190). A claim is factually frivolous if it is “not well grounded in fact” and is legally frivolous if it is “not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law.” (*Ibid.*). In either case, to obtain sanctions, the moving party must show the party's conduct in asserting the claim was objectively unreasonable. (*Ibid.*) **A claim is objectively unreasonable if “any reasonable attorney would agree that [it] is totally and completely without merit.”** (*Ibid.*)(emphasis added).

However, **“section 128.7 sanctions should be ‘made with restraint’ [Citation], and are not mandatory even if a claim is frivolous.”** (*Peake v. Underwood* (2014) 227 Cal.App.4th 428, 448)(emphasis added).

The Legislature enacted section 128.7 based on Federal Rules of Civil Procedure, 28 U.S.C., rule 11 (as amended in 1993). (*Musaelian v. Adams* (2009) 45 Cal.4th 512, 518, fn. 2). Hence, federal case law construing rule 11 is persuasive authority on the meaning of section 128.7. (*Guillemin v. Stein* (2002) 104 Cal.App.4th 156, 168). Under rule 11, even though an action may not be frivolous when it is filed, it may become so if later-acquired evidence refutes the findings of a prefiling investigation and the attorney continues to file papers supporting the client's claims. (*Childs v. State Farm Mut. Auto. Ins. Co.* (5th Cir.1994) 29 F.3d 1018, 1025). As a result, a plaintiff's attorney cannot “just cling tenaciously to the investigation he had done at the outset of the litigation and bury his head in the sand.” (*Ibid.*). Rule 11 requires an attorney to conduct a reasonable inquiry to determine if his or her client's claim was well-grounded in fact and to take into account the adverse party's evidence during the pendency of litigation. (*Ibid.*).

B. SAFE HARBOR

Code of Civil Procedure section 128.7(c)(1) also requires that a motion for sanctions be made separately from other motions and that notice of the motion must be served, but not filed with the Court, unless, within 21 days after service of the motion, the challenged paper is not withdrawn. This 21-day time period is known as a “safe harbor” period. The purpose of a safe harbor period is to allow a party to avoid sanctions by withdrawing the improper pleading during the 21-day period. (*Li v. Majestic Industry Hills LLC* (2009) 177 Cal. App. 4th 585, 591). This permits a party to withdraw a questionable pleading without penalty, and promotes judicial economy and resources. (*Ibid.*).

III. ANALYSIS

Here, Defendant/Cross-Complainant Persimmons seeks monetary sanctions against Plaintiff Bodwin and his attorney for refusing to dismiss the first cause of action, alleging breach of contract in the Complaint, in the amount of \$20,000.00. (Declaration of Pernick, ¶ 3).

Defense counsel attests that on October 6, 2025, he met-and-conferred with Plaintiff's counsel regarding this motion for sanctions. (Declaration of Pernick, ¶ 2). Plaintiff refused to dismiss his first cause action. (*Id.*). On December 19, 2025, Defendant Persimmons filed this motion for sanctions.

The Court finds that the Defendant has complied with safe harbor period as required under Code of Civil Procedure section 128.7(c)(1).

Defendant seeks sanctions against the Plaintiff and his counsel on the grounds that the pleadings wholly lack factual merit. (Defendant's motion, p. 14). Defendant asserts that Plaintiff/Cross-Defendant Bodwin's allegations regarding his entitlement to 3,000,000 share in addition to the 3,000,000 share under RSPA lack any evidentiary basis or factual merit, and thus his first cause of action for breach of contract is frivolous. (Declaration of Chan, ¶¶ 3; Exhibits 2-3; Defendant's motion, p. 15). Defendants assert that at the time Plaintiff Bodwin separated from the company, he had a total of 500,000 vested shares in Defendant Persimmons. (Declaration of Chan, ¶ 4). Defendants assert that on its face, the Assignment Agreement and RSPA can only be interpreted to mean that Plaintiff Bodwin agreed to give Persimmons \$30 worth of consideration, comprised of the assignment of his intellectual property under the Assignment Agreement and \$15 in cash, in exchange for 3,000,000 shares of Persimmons common stock. (Defendant's Motion, p. 6). Defense emphasizes that Plaintiff Bodwin did not have a different understanding or disagreement with these terms. (Declaration of Chan, ¶ 2; Exhibit 1).

However, the turning point, defense asserts is only after Plaintiff Bodwin met his current counsel and filed a Complaint seeking 6,000,000 shares under the Assignment Agreement and RSPA. (Defendant's Motion, p. 7). Defendant/Cross-Complaint assert that the first cause of action as brought in bad faith. (*Id.*, at 7-14). Defendant emphasizes that given the nature of conduct and defenses multiple attempts to informally resolve the issue, the Plaintiff/Cross-Defendant's refusal to dismiss the first cause of action, breach of contract claim, notwithstanding documents showing a lack of factual merit, justifies the imposition of actions. (Defendant's Motion, p. 14-15). Defense counsel asserts that Defendants will incur approximately \$20,000.00 in attorney's fees and costs for bringing this motion, which includes cost of pre-motion correspondence, that the motion, a reply in support of the motion, and preparation and attendance of the hearing. (*Id.*). Defense seeks an order imposing \$10,000.00 on the Plaintiff/Cross-Defendant Bowdin, individually and \$10,000.00 against his counsel as a means to "... deter them from engaging in similar conduct in the future." (Defendant's motion, p. 14).

Since that time, the parties have litigated motions involving the first cause of action. Defendant's motion for judgment on the pleadings on the first cause of action on May 5, 2026, which was denied. On July 2, 2026, the Honorable Manoukian heard Defendant's motion for summary adjudication and submitted an order on July 7, 2026, granting Defendant's motion for summary adjudication of the first, sixth, seventh, and eight causes of action, and denying motion for summary adjudication of the second, fifth, eleventh, and thirteenth causes of action. Defendant requests that the Court find that the first cause of action lacks and evidentiary basis. The Court denies this request on the grounds that this claim was already adjudicated in Defendant's favor on July 7, 2026 per Judge Manoukian's Order.

Plaintiff/Cross-Defendant Bodwin opposes this present motion and asserts that the breach of contract claim was not baseless, frivolous, or in bad faith. Plaintiff's counsel asserts that it was fulfilling its duty to conduct a reasonable inquiry into the facts and circumstances underlying the breach of contract that also included a review of the express terms of the Assignment Agreement. (Declaration of Jacobs ¶¶ 6-9 ;Opposition, p. 5). Plaintiff's counsel argues that express language in the Assignment Agreement supports Plaintiff's plausible interpretation that the contract provided for additional shares. (Opposition, at p. 6). Even if the Court ultimately read the agreement different, as per Judge Manoukian's July 7, 2026 Order, Plaintiff avers that this does not render Plaintiff's interpretation as

objectively unreasonable. (Declaration of Jacobs ¶ 11). Plaintiff also points to the ruling granting in part and denying in part certain causes of actions as evidence that the claims were not baseless or fruitless. (*Id.*).

Plaintiff's counsel emphasizes that the Honorable Socrates Manoukian¹ "wrestled with the merits of Bodwin's claim" and that Judge Manoukian "... commend[ed] both parties' counsel for being "[g]ood lawyers writing good papers. . ." and acknowledging the challenge it faced in issuing its difficult decision. . ." (Opposition, p. 5). Plaintiff again notes that Judge Manoukian noted , ""[g]ood lawyers writing good papers on complex cases are a challenge for a judge ruling on a summary judgment motion." (Opposition, p. 6). Plaintiff also notes that Judge Manoukian also expressly stated, "[a]ccordingly, the Court is faced with an issue of contract interpretation." (*Id.*, at p. 10). Plaintiff offers these remarks as evidence that the first cause of action was not frivolous, subject to a reasonable dispute over the interpretation of an agreement that warranted a judicial determination. (*Id.*, at p. 11).

Any references to comments made by the Honorable Socrate Manoukian from the July 2, 2026 noted above is hearsay. There is not attached certified court transcript. The Court will not consider the truth of the matter asserted.

Plaintiff asserts a legitimate contract-interpretation dispute arose and was settled after the motion for summary judgment/adjudication hearing. Plaintiff asserts that the dismissal of the first cause of action was based on a legitimate interpretation disagreement of the parties' agreement and does not equate to sanctionable conduct. Plaintiff assert that Defendant Persimmons cannot establish that the claim was frivolous, objectively unreasonable, or brought for an improper purpose. (*Id.*, at p. 7). After the court granted the summary adjudication on the first cause of action, and before this hearing, Plaintiff's counsel attempted to meet-and-confer with defense regarding withdrawing the motion, but Defendant refused. (Declaration of Jacobs ¶ 12; Exhibit 1). As a result, Plaintiff expended substantial time reviewing and preparing for this motion and as of August 19, 2026 incurred \$11,397.00 and anticipates spending another three hours at the hourly rate of \$530.00 in the matter. (*Id.*, at ¶ 15). The Court DENIES the request for fees and costs on the grounds that Plaintiff has not filed its own separate motion or complied with safe harbor rules.

Defendant fails to demonstrate that first cause of action for breach of contract is frivolous within the meaning of section 128.7. Defendant has not established that Plaintiff/Cross-Defendant Bodwin or his attorney asserted a false contractual interpretation, acted in bad faith, or lacked objective reasonable basis for conducting investigation into the agreements regarding the claim. Even if the first cause of action was deemed objectively unreasonable in that any reasonable attorney would agree that the claim is totally and completely without merit, section 128.7 should be exercised with restraint. (Code of Civ. Proc., §128.7; *Bucur v. Ahmad, supra*, 244 Cal.App.4th at 189–190; *Peake v. Underwood, supra*, 227 Cal.App.4th at 448).

IV. CONCLUSION

Based on the foregoing, the motion is DENIED. The Court will prepare the formal Order.

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Calendar Line # 4
Case Name Curtis Edwad McGovert vs Q2 Fiber Communications Inc. et al
Case No. 25CV456187
Motion to Compel Responses to For Interrogatories, Special Interrogatories, and Request for Production of Documents, Set One and Sanctions
<u>I. BACKGROUND</u> This case stems from a January 13, 2023, motor-vehicle incident. On January 9, 2025, Plaintiffs Curtis Edward McGovert, and Maile Rose McGovert, a minor, by and through her Guardian Ad Litem, Marilyn Javier Gil (collectively “Plaintiffs”) filed a Complaint alleging two causes of actions and seeking damages against Defendants Q2 Fiber Communications Inc. (“Q2 Fiber”), and Derik Ryan Punneo (collectively “Defendants”). Before the Court is Defendant Q2 Fiber’s motion to compel verified responses to form interrogoatires (“FROG”), special interrogoatires (“SROG”), request for production of documents (“RFPD”), set one, and sanctions that was filed on March 2, 2026. The motion is accompanied by a proof of service indicating electronic mail service on Plaintiffs’ counsel of record. The motion to compel is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 19, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). The Court has carefully reviewed the following: notice of motion to compel (totaling 4 pages), memorandum of points and authorities (totaling 8 pages); Declaration of Jiaxun Fu and attached Exhibits A- C (totaling 41 pages); proof of service; and the pleadings. <u>II. LEGAL STANDARD</u> Purusant to Code of Civil Procedure section 2030.260(a), a party must respond to interrogatories within 30 days after service. If a party to whom interrogatories are directed does not provide a timely response, the propounding party may move for an order compelling response to the interrogatories. (<i>Id.</i>, § 2030.290, subd. (b)). There is no time limit for a motion to compel initial responses, and no meet and confer efforts are required. (<i>Id.</i>; see also, <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 411). Nor must a separate statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1)). In addition, a party who fails to provide a timely response generally waives all objections. (Code Civ. Proc., § 2030.290, subd. (a)). A party must respond to interrogatories and document requests under oath. (Code Civ. Proc., §§ 2020.010(a), 2030.210(a); 2031.250(a)). An unverified discovery response is treated as no response. (<i>Steele v. Totah</i> (1986) 180 Cal.App.3d 545, 549; <i>Appleton v. Sup. Ct.</i> (1988) 206 Cal.App.3d 632, 636-37). In such a case, the propounding party may seek to compel verified responses. (<i>Id.</i>). Code of Civil Procedure section 2015.5 provides that a verification must be signed under penalty of perjury and state the date and place of execution. “[C]ourts do not find compliance with section 2015.5 to be both substantial and sufficient unless all statutory conditions appear on the face of the declaration in some form.” (<i>Kulshrestha v. First Union Commercial Corp.</i> (2004) 33 Cal.4th 601, 612). California courts have taken a liberal approach to permissible discovery, which has led the courts to resolve any doubt in favor of permitting discovery. (<i>Pacific Tel. & Tel. Co. v. Superior Court</i> (1970) 2 Cal.3d 161, 173 (“In accordance with the liberal policies underlying the discovery procedures, California courts have been broad-minded

in determining whether discovery is reasonably calculated to lead to admissible evidence). (*Id.* at 172; *see also*, *Pettie v. Superior Court* (1960) 178 Cal.App.2d 680, 687). As a practical matter, it is difficult to define at the discovery stage what evidence will be relevant at trial. Therefore, the party seeking discovery is entitled to substantial leeway. (*Pacific Tel. & Tel. Co., supra*, 2 Cal.3d at p. 172). The courts have taken the view if an error is made in ruling on a discovery motion, it is better that it be made in favor of granting discovery of the non-discoverable rather than denying discovery of information vital to preparation or presentation of the party's case or to efficacious settlement of the dispute.” (*Norton v. Superior Court* (1994) 24 Cal.App.4th 1750, 1761).

“As a general matter, the statutory scheme imposes no obligation on a party propounding interrogatories to establish good cause or prove up the merits of any underlying claims.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 550). Indeed, a litigant “is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section.” (*Id.* at p. 541, citing *West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 422).

III. ANALYSIS

Here, Defendant Q2 served initial discovery including FROG, SPROG, RFPD, set one on September 26, 2025 on Plaintiff’s counsel. (Declaration of Fu, ¶ 2; Exhibit A). Plaintiff’s responses to initial discovery were due on October 28, 2025. (Declaration of Fu, ¶ 3). On October 27, 2025, a day before responses were due, Plaintiff’s counsel requested a two-week extension to respond to discovery. (*Id.*). Defendant Q2 agreed, but requested that Plaintiff’s counsel confirm via letterhead. (*Id.*). Plaintiff’s counsel provided no further response and the defense states that no extension was agreed upon. (*Id.*). Defendant Q2 argues that even if an extension was provided, responses were due by November 11, 2025. (*Id.*; Exhibit B). Defense counsel sent a meet-and-confer email on November 14, 2025 informing Plaintiff’s counsel that if responses were not received by November 21, 2025, Defendant Q2 would seek a motion to compel. (Declaration of Fu, ¶ 4; Exhibit C). Defense counsel sent final correspondence on February 23, 2026, demanding responses within seven days. (*Id.*, at ¶ 5). As of March 2, 2026, Defendant Q2 did not receive any response to initial discovery. (*Id.*, at ¶ 6).

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2030.290(c), when a party moves to compel initial responses to interrogatories, “the court ***shall*** impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes [the motion], unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.290, subd. (c)(emphasis added)). The court shall impose a monetary sanction against the party who unsuccessfully makes or opposes a motion to compel further responses to interrogatories or demand for production of documents unless the party subject to the sanction acted with substantial justification or the sanction would otherwise be unjust. (Code of Civ. Proc., §§ 2030.300, subd. (d), 2031.310, subd. (h), 2033.290, subd. (d)).

Defendant Q2 requests sanctions in the amount of \$3,060.00.00 because Defendant failed to provide verified response to FROG, SPROG, and RFPD, set one that resulted in the instant motion. (Declaration of Fu, ¶ 7). Defendant Q2’s counsel seeks \$2,100.00 for seven (7) hours of working drafting and preparing the motion at the hourly rate of \$300.00; \$900.00 for three (3) hours of anticipated time to prepare and attend a hearing on the matter at the hourly rate of \$300.00; and \$60.00 in filing fees.

The Court notes that no opposition papers were filed, thus no time required for review of an opposition or prepare a reply brief. Further, an appearance on an unopposed motions prospective. The Court also finds this motion to be straight forward. Accordingly, the GRANTS five hours of time expended on the motion at the requested hourly

rate of \$300.00 as well as the \$60.00 in costs for filing fees. Thus, the sanctions is awarded in the total amount of \$1,560.00.

V. CONCLUSION

Based on the foregoing, the Court GRANTS the motion to compel verified responses to FROGS, SPROGs, RFPD, set one. Plaintiffs is ORDERED to provided verifications to the response to FROGS, SPROGs, RFPD, set one within thirty (30) days from this hearing. The Court GRANTS sanctions against Plaintiffs in the amount of \$1,560.00. Defendant is to pay the sanctions amount within thirty (30) days from this hearing.

The Court will prepare the formal Order.

Calendar Line # 5

Case Name Kourosh Zahedi et al vs Volkswagen Group of America, Inc.

Case No. 25CV462288

Motion Judgment on the Pleadings

Before the court is defendants Volkswagen Group of America, Inc. and Stevens Creek Audi's motion for judgment on the pleadings. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

On March 27, 2025, Plaintiffs Kourosh Zahedi and La Patisserie Bakery (collectively, "Plaintiffs") filed this case that arises from the Song-Beverly Consumer Warranty Act (Civ. Code, § 1790, et seq; the "Act" or "Song-Beverly") against defendants Volkswagen Group of America, Inc. ("Volkswagen") and Stevens Creek Audi ("Stevens Creek"; collectively, "Defendants").

Plaintiffs allege to have purchased a 2023 Audi E-tron under warranty on March 31, 2023 (the "Subject Vehicle"). (Complaint, ¶¶ 8, 10). Before Plaintiffs purchased the Subject Vehicle, Volkswagen knew that vehicles equipped with the same battery system as the Subject Vehicle suffered from defects that included, inter alia, loss of propulsion power while driving, sudden and premature battery failure, failure to start, and reduced range (the "Battery Defect"). (*Id.* at ¶ 56). Plaintiffs delivered the Subject Vehicle to Stevens Creek for substantial repair on at least one occasion, but Stevens Creek failed to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards. (*Id.* at ¶¶ 48, 50).

Plaintiffs allege the following causes of action: (1) violation of Civil Code section 1793.2, subdivision (d) (against Volkswagen); (2) violation of Civil Code section 1793.2, subdivision (b) (against Volkswagen); (3) violation of Civil Code section 1793.2, subdivision (a)(3) (against Volkswagen); (4) breach of the implied warranty of merchantability (against Volkswagen); (5) negligent repair (against Stevens Creek); and (6) fraudulent inducement – concealment (against Volkswagen).

Defendants filed the instant motion for judgment on the pleadings on March 11, 2026.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 438(f), a defendant's motion for judgment on the pleadings may be made after the time to demur has expired and an answer has been filed. Under a Code of Civil Procedure section 438(c), a motion by a defendant may be made on the grounds that (1) the court "lacks jurisdiction of the subject of one or more of the causes of action alleged" or (2) the complaint or cross-complaint "does not state facts sufficient to constitute a cause of action against that defendant." A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time for demurrer has expired. Except as provided by statute, the rules governing demurrers apply. (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999). "A

motion for judgment on the pleadings is akin to a general demurrer; it tests the sufficiency of the complaint to state a cause of action. The court must assume the truth of all factual allegations in the complaint, along with matters subject to judicial notice.” (*Wise v. Pacific Gas and Elec. Co.* (2005) 132 Cal.App.4th 725, 738, citations omitted). A motion for judgment on the pleadings “does not lie as to a portion of a cause of action, and if any part of a cause of action is properly pleaded, the [motion] will be overruled.” (*Fire Ins. Exchange v. Superior Court* (2004) 116 Cal.App.4th 446, 452).

Code of Civil Procedure section 438(e) sets forth a timeline for statutory motion for judgment on the pleadings, which must be made within 30 days of the date the action was initially set for trial, unless otherwise provided by the Court. However, this only applies to the statutory basis for the motion. (Code Civ. Proc., § 438). Caselaw after the creation of that statute still recognizes grounds for a common law motion for judgment on the pleadings. (*Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650 [recognizing that the motion may be made “at any time either prior to the trial or at the trial itself”]; *see also, Smiley v. Citibank (South Dakota) N.A.* (1995) 11 Cal.4th 138, 145, fn. 2 [non-statutory MJOP upheld despite fact section 438 enacted during course of proceedings]; *Cordova v. 21st Century Ins. Co.* (2005) 129 Cal.App.4th 89, 109 [MSJ treated as a common law motion for judgment on the pleadings]; *Tarin v. Lind* (2020) 47 Cal.App.5th 395 [addressing merits of non-statutory motion]).

III. PROCEDURAL ISSUES

Defendants improperly move for judgment on the pleadings as to Plaintiffs’ request for punitive damages. A motion for judgment on the pleadings is not the proper procedural vehicle for disposing of an improper remedy. (Code Civ. Proc., § 438, subd. (c)(1)(B); *Caliber Bodyworks, Inc. v. Super. Ct.* (2005) 134 Cal.App.4th 365, 385). The court will not address Defendants’ arguments regarding Plaintiffs’ request for punitive damages.

Plaintiffs filed their opposition two days late in violation of Code of Civil Procedure section 1005, subdivision (b). Because the court has discretion to consider a late-filed paper and Defendants have not demonstrated any real prejudice from the late filing, the court will look past this procedural violation and consider the opposition on its merits. (*Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765). Plaintiffs and their counsel are admonished for the procedural violation. Any future violation may result in the court’s refusal to consider untimely papers.

III. ANALYSIS

A. SONG-BEVERLY CAUSES OF ACTION

Volkswagen moves for judgment on the pleadings of the Song-Beverly causes of action (first through fourth) on the ground that each fails to allege sufficient facts.

Statutory causes of action must be pleaded with particularity. (*Covenant Care, Inc. v. Superior Court (Inclan)* (2004) 32 Cal.4th 771, 790 (*Covenant Care*)). Simply parroting statutory language is insufficient to state a cause of action in the absence of supporting facts. (*Hawkins v. TACA Internat. Airlines, S.A.* (2014) 223 Cal.App.4th 466, 478 (*Hawkins*)).

1. Pleading the Retail Sale or Lease

Contrary to Volkswagen’s assertion, the complaint adequately alleges a retail sale. The complaint alleges that Volkswagen is in the business of marketing, distributing, and selling automobiles. (Complaint, ¶ 5). The complaint also alleges that Plaintiffs and Volkswagen entered into a warranty contract for the Subject Vehicle. (*Id.* at ¶ 8). The complaint further alleges that the Subject Vehicle is a “consumer good”, Plaintiffs are the “buyers” of said good, and Volkswagen is a “manufacturer” or “distributor” under the Act. (*Id.* at ¶ 10). Taken together and construed liberally, these allegations are sufficient. (See *Lance Camper Manufacturing Corp. v. Republic Indemnity Co.* (1996) 44 Cal.App.4th 194, 198 [liberally construing the allegations of the complaint on a motion for judgment on the pleadings]).

2. *Civil Code section 1793.2, subdivision (d)*

Volkswagen contends that the first cause of action for violation of Civil Code section 1793.2, subdivision (d) fails to allege specific repair orders or nonconformities.

Civil Code section 1793.2, subdivision (d) requires a manufacturer to promptly replace the vehicle or make restitution to the buyer when the manufacturer is unable to service or repair the vehicle in conformity with the applicable express warranty after a reasonable number of repair attempts.

Here, the complaint alleges that Volkswagen (1) was unable to repair the vehicle to conform to the applicable express warranties after a reasonable number of opportunities; and (2) failed to promptly replace the vehicle or make restitution as required by the Act. (Complaint, ¶ 29). These alleged defects and nonconformities to warranty manifested during the express warranty period and include electric battery defects and electrical defects. (*Id.* at ¶ 13). These allegations are sufficient to withstanding a motion for judgment on the pleadings. Volkswagen offers no authority to support the proposition that Plaintiffs must plead the specific repair orders or the specific nonconformities affecting the Subject Vehicle for each repair visit. (*United Grand Corp. v. Malibu Hillbillies, LLC* (2019) 36 Cal.App.5th 142, 153 [court may disregard conclusory arguments that are not supported by pertinent legal authority or fail to disclose the reasoning by which the appellant reached the conclusions he or she wants us to adopt]; see *Gutierrez v. Carmax Auto Superstores California* (2018) 19 Cal.App.5th 1234, 1261 [pleading with particularity is more lenient than the pleading with specificity standard for fraud claims]).

The motion for judgment on the pleadings as to the first cause of action is DENIED.

3. *Civil Code section 1793.2, subdivision (b)*

Volkswagen argues that the second cause of action for violation of Civil Code section 1793.2, subdivision (b) fails to allege any specific 30-day repair violation.

Civil Code section 1793.2, subdivision (b) requires a manufacturer to begin service or repair on goods that do not conform with the applicable express warranty in reasonable time. Unless the buyer agrees otherwise, reasonable time means within 30 days. (Civ. Code, § 1793.2, subd. (b)).

The second cause of action for violation of Civil Code section 1793.2, subdivision (b) is insufficiently pleaded because it simply parrots the statute. (Complaint, ¶ 35). The complaint pleads no facts specific to Plaintiffs' case. The cause of action is not pleaded with the particularity required of statutory causes of action. (*Hawkins, supra*, 223 Cal.App.4th at p. 478).

Plaintiffs fail to meet their burden of proving an amendment would cure any defect. Nevertheless, because this is the first pleading challenge, the court will grant leave to amend. (*City of Stockton v. Super. Ct.* (2007) 42 Cal.4th 730, 747 [leave to amend is liberally allowed as a matter of fairness, unless the pleading shows on its face that it is incapable of amendment]).

The motion for judgment on the pleadings as to the second cause of action is GRANTED with 10 days' leave to amend.

4. *Civil Code, section 1793.2, subdivision (a)(3)*

Volkswagen asserts that the third cause of action for violation of Civil Code section 1793.2, subdivision (a)(3) is conclusory and inadequately pleaded.

Civil Code section 1793.2, subdivision (a)(3) requires a manufacturer to make available sufficient literature and replacement parts to authorized repair facilities to effect repairs during the express warranty period.

The third cause of action is insufficiently pleaded because it also simply parrots the statute. (Complaint, ¶ 40).

The third cause of action is devoid of any supporting allegations specific to Plaintiffs' case. It is not pleaded with the particularity required of statutory causes of action. (*Hawkins, supra*, 223 Cal.App.4th at p. 478).

The motion for judgment on the pleadings as to the third cause of action is GRANTED with 10 days' leave to amend.

5. *Breach of the Implied Warranty of Merchantability*

Volkswagen contends that the fourth cause of action for breach of the implied warranty of merchantability under the Act is deficient because it fails to allege: (1) a qualifying sale to a retail buyer; (2) the battery defect existed at the time of purchase or within a year thereafter; (3) the defect rendered the vehicle unfit for ordinary use during that period; or (4) the Subject Vehicle was presented within the implied-warranty period. Notably, Plaintiffs do not address this argument in their opposition.

To properly assert a breach of implied warranty claim, a plaintiff must allege a breach of warranty, occurring while the warranty is valid, and bring suit within the limitations period. (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1306 (*Mexia*)). The "implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale." (*Id.* at p. 1304). Thus, if a product is sold with a latent defect, the implied warranty is breached "by the existence of the unseen defect, not by its subsequent discovery." (*Id.* at p. 1305). As discussed above, the complaint adequately alleges a qualifying sale to a retail buyer. (Complaint, ¶¶ 8, 10). The complaint also alleges that the Subject Vehicle had a latent defect at the time of purchase. (*Id.* at ¶ 45). Thus, Plaintiffs' failure to allege that the Subject Vehicle was presented within the implied-warranty period is not fatal. (See *Mexia, supra*, 174 Cal.App.4th at p. 1304).

The complaint, however, does not plead any facts supporting the allegation that the Subject Vehicle was unfit for ordinary use. The fourth cause of action is not pleaded with the requisite particularity. (*Covenant Care, supra*, 32 Cal.4th at p. 790).

The motion for judgment on the pleadings as to the fourth cause of action is GRANTED with 10 days' leave to amend.

B. NEGLIGENCE REPAIR

Stevens Creek moves for judgment on the pleadings of the negligent repair cause of action on the ground that (1) the Complaint fails to allege sufficient facts; and (2) is barred by the economic loss rule.

The elements of a negligence cause of action are duty, breach, causation and damages." (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318).

The complaint alleges that (1) Plaintiffs delivered the Subject Vehicle to Stevens Creek for substantial repair at least once; (2) Stevens Creek owed a duty to Plaintiffs to use ordinary care and skill in storing, preparing, and repairing the Subject Vehicle in accordance with industry standards; (3) Stevens Creek breached that duty; and (4) Stevens Creek's negligent breach was a proximate cause of Plaintiffs' damages. (Complaint, ¶¶ 48-51). These allegations are sufficient to survive a motion for judgment on the pleadings. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 ["Negligence may be alleged in general terms; that is, it is sufficient to allege an act was negligently done without stating the particular omission which rendered it negligent."]). Stevens Creek provides no authority to support their assertion that the cause of action must be pleaded with specificity. Stevens Creek can determine the specific repairs through discovery.

Stevens Creek also argues that the negligent repair cause of action is barred by the economic loss rule.

The economic loss rule requires a purchaser to recover solely in contract for purely economic loss due to disappointed expectations, unless the purchaser can demonstrate harm above and beyond a contractual promise. (*Robinson Helicopter Company v. Dana Corporation* (2004) 34 Cal.4th 979, 988). The economic loss rule, however, does not necessarily bar recovery in tort for damage that a defective product causes to other portions of a larger product, into which the former has been incorporated. (*Jimenez v. Super. Ct.* (2002) 29 Cal.4th 473, 483). But the complaint does not allege damage to other portions of the Subject Vehicle caused by any allegedly negligent repair. The complaint only alleges that the Subject Vehicle was sold with a battery defect that Stevens Creek did not cause but could not fix. The economic loss rule therefore bars Plaintiffs' fifth cause of action for negligent repair.

The motion for judgment on the pleadings as to the fifth cause of action is GRANTED with 10 days' leave to amend.

C. FRAUDULENT INDUCEMENT – CONCEALMENT

Volkswagen moves for judgment on the pleadings as to the sixth cause of action on the grounds that the complaint fails to allege: (1) the claim with the requisite specificity; (2) a duty to disclose; and (3) reliance.

The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) the plaintiff sustained damage as a result of the concealment or suppression of the material fact.

(*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40 (*Rattagan*)).

1. Specificity

Although it is a general rule that each element in a fraud cause of action must be pleaded with specificity (*Lazar v. Super. Ct.* (1996) 12 Cal.4th 631, 645), this pleading requirement is relaxed in claims for concealment. (*See Alfaro v. Community Housing Imp. System & Planning Ass'n., Inc.* (2009) 171 Cal.App.4th 1356, 1384 (*Alfaro*) ["How does one show 'how' and 'by what means' something didn't happen, or 'when' it never happened, or 'where' it never happened?"]).

The complaint satisfies the pleading requirements for a fraud cause of action. It alleges that the Subject Vehicle exhibited symptoms of defects. (Complaint, ¶¶ 26, 56). Volkswagen allegedly knew that the vehicle had those defects but failed to disclose them at time of purchase. (*Id.* at ¶¶ 55, 59). And because Volkswagen had exclusive access to pre-production testing data, early consumer complaints, among other sources of information not available to Plaintiffs, Volkswagen was in a superior position to know of the defects. (*Id.* at ¶ 60(a)-(b)). Plaintiffs allege that Volkswagen intentionally concealed those defects. (*Id.* at ¶ 61). Plaintiffs further allege that had they known of those defects, they would not have purchased the Subject Vehicle. (*Id.* at ¶ 62). At least one appellate court has deemed similar allegations sufficient to support cause of action for fraudulent inducement by concealment. (*Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 843-844).²

Plaintiffs need not allege the "who", "how", "by what means", "when", and "where" of Volkswagen's alleged concealment because that information is squarely within Volkswagen's knowledge. (*Alfaro, supra*, 171 Cal.App.4th at p. 1384). And the allegation that Volkswagen "knowingly and intentionally concealed material facts" is sufficient for purposes of pleading intent. (*Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1060 [false promise sufficiently pled with a general allegation that the promise was made without an intent to perform]).

² Although the Supreme Court initially granted review in *Dhital*, it subsequently dismissed review, which means *Dhital* is precedential authority. (Cal Rules of Court, rule 8.1115(e)(2)).

2. *Duty to Disclose*

“To maintain a cause of action for fraud through nondisclosure or concealment of facts, there must be allegations demonstrating that the defendant was under a legal duty to disclose those facts.” (*Los Angeles Memorial Coliseum Commission, et al. v. Insomniac, Inc., et al.* (2015) 233 Cal.App.4th 803, 831). A duty to disclose may arise where the parties in a relationship that gives rise to the duty, such as a seller and buyer or parties entering into any kind of contractual arrangement. (*Rattagan, supra*, 1 Cal.5th at p. 40).

The complaint sufficiently alleges a relationship giving rise to a duty to disclose. Plaintiffs allege that they entered into a warranty contract with Volkswagen. (Complaint, ¶ 8).

3. *Reliance*

To plead reliance in an action for nondisclosure or concealment, a plaintiff must allege that “had the omitted information been disclosed, one would have been aware of it and behaved differently.” (*Mirkin v. Wasserman* (1993) 5 Cal.4th 1082, 1093). “Reliance exists when the misrepresentation or nondisclosure was an immediate cause of the plaintiff’s conduct which altered his or her legal relations, and when without such misrepresentation or nondisclosure he or she would not, in all reasonable probability, have entered into the contract or other transaction.” (*Alliance Mortgage Cp., v. Rothwell* (1995) 10 Cal.4th 1226, 1239 (*Alliance*)).

Plaintiffs have alleged that had they known of the defect, they would not have purchased the Subject Vehicle. (Complaint, ¶ 62). The reliance element is sufficiently pleaded. (See *Alliance, supra*, 10 Cal.4th at p. 1239 [“Except in the rare case where the undisputed facts leave no room for a reasonable difference of opinion, the question of whether a plaintiff’s reliance is reasonable is a question of fact.”]).

4. *New Arguments on Reply*

Defendants raise multiple new arguments on reply. Specifically, Defendant contends that the fraud cause of action: (1) fails to allege an agency relationship between Volkswagen and a dealership; (2) is barred by the economic loss rule under *Rattagan*; and (3) is actually an action for breach of contract.

The court rejects these arguments as they are improperly raised for the first time on reply. (*Browne v. County of Tehama* (2013) 213 Cal.App.4th 704, 720, fn. 10 [“Points raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument.”]). The motion for judgment on the pleadings as to the sixth cause of action is DENIED.

V. CONCLUSION

Based on the foregoing, the Court GRANTS Defendants’ motion for judgment on the pleadings as to the second, third, fourth, and fifth causes of action with ten (10) days’ leave to amend. The Court DENIES Defendants’ motion for judgment on the pleadings as to the first and sixth causes of action.

The Court will prepare the formal order.

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Calendar Line # 6
Case Name Jane Doe 1 vs Rafael Ramirez et al
Case No. 25CV473786
Motion for Change of Venue I. <u>BACKGROUND</u> This case stems from allegations of sexual assault. Plaintiff Jane Doe filed a Complaint on August 27, 2025 against Defendants Pacific Collegiate School (“PCS”), Santa Cruz County Office of Education (“SCCOE”), Rafael Ramirez, Maria Reitano, Trung Lai, and DOES 1 through 10 (collectively “Defendants”). Plaintiff filed a First Amended Complaint on January 15, 2026 alleging five causes of actions, including: (1) sexual abuse of a minor; (2) negligence of SCCOE, PCS employee in hiring, supervision and/or retention of Defendant Lai under Government Code section 815.2; (3) negligence of SCCOE, PCS employee in, supervision of Jane Doe 1 under Government Code section 815.2; (4) negligence of SCCOE, PCS employee in hiring, supervision and/or retention of Defendant Lai; and (5) negligence of SCCOE, PCS employee in, supervision of Jane Doe 1. On March 24, 2026, the Court heard Defendant Lai’s motion to stay civil proceedings for a period of six months pending Defendant Lai’s criminal case in Santa Cruz County, docket 24CR02808. Before the Court, is Plaintiff’s motion to change venue. The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 19, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). Defendants stipulate to Plaintiff’s motion to transfer venue to Santa Cruz County. II. <u>LEGAL STANDARD</u> Code of Civil Procedure section 395, subdivision (a) provides, in pertinent part: Except as otherwise provided by law and subject to the power of the court to transfer actions or proceedings as provided in this title, the superior court in the county where the defendants or some of them reside at the commencement of the action is the proper court for the trial of the action. If the action is for injury to person or personal property or for death from wrongful act or negligence, the superior court in either the county where the injury occurs or the injury causing death occurs or the county where the defendants, or some of them reside at the commencement of the action, is a proper court for the trial of the action. (Code of Civ. Proc., 395(a)). The burden is on the moving party to establish that the venue selected by Plaintiff is improper. And the moving party has the burden of “negating the propriety of venue as laid on all possible grounds.” (<i>Karson Industries, Inc. v. Superior Court</i> (1969) 273 Cal.App.2d 7, 8-9). III. <u>ANALYSIS</u> Here, the Plaintiff’s motion to change venue is unopposed and made pursuant to a stipulation by all parties. (Exhibit A, attached to Motion, p. 1). Plaintiff moves to transfer venue from Santa Clara County to Santa Cruz County. It is unopposed that parties reside or conduct business in Santa Cruz County. (Motion, p. 2). Plaintiff claims that the sexual assault occurred in Santa Cruz County. (<i>Id.</i>, at p. 3). The Court notes that parties represented that a criminal case was filed and pending in Santa Cruz County, docket number 24CR02808. It is undisputed that this civil case

and criminal matter in Santa Cruz County arise from the same operative factual allegations. Parties stipulate that a transfer to Santa Cruz County will have no adverse inference or legal consequences. (Exhibit A, at p. 4).

The Court finds that Santa Cruz County is the proper venue for this action. The parties stipulate that all parties either reside or conduct business in Santa Cruz County. Moreover, the underlying factual allegations occurred in Santa Cruz County. Criminal charges arising from the same operative facts were filed in Santa Cruz in docket 24CR02808.

IV. CONCLUSION

Based on the foregoing, the stipulated motion to change venue in this action to Santa Cruz County is GRANTED. The Court will prepare the formal order.

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Calendar Line # 7
Case Name Adelita Mendez Gonzalez vs Costco Wholesale Corporation et al
Case No. 25CV474250
Motion to Disqualify Plaintiff's Law Firm I. <u>BACKGROUND</u> This case stems from a personal injury, slip and fall incident at Costco warehouse. On September 3, 2025, Plaintiff Adelita Mendez Gonzalez ("Gonzalez") alleges two causes of action including: (1) motor vehicle accident general negligence, and (2) premises liability. Defendant Costco Wholesale Corporation, a Washington Corporation ("Costco"). Before the Court is Defendant Costco's motion to disqualify Plaintiff's counsel, Downtown L.A. Group ("DTLA") based on one its attorneys Anthony Werbin ("Werbin"). From approximately July 2017 to January 2020, Mr. Werbin previously worked as an associate at Manning & Kass, Elrod, Ramirez, Trester LLP ("M&K"), which was one of the firms that Costco retained to defend in claims, including personal injury suits. (Declaration of Werbin ¶ 3). It is undisputed that Mr. Werbin represent Costco in any matters previously involving Plaintiff Gonzalez. (Defendant's memorandum of points and authorities ("MPA"), p. 4). Defendant Costco seeks to disqualify DTLA claiming vicarious conflict and fruits of the poisonous tree (Defendant's notice, p. 1). The motion was filed on January 9, 2026 and accompanied by a proof of service indicating electronic mail service on the plaintiff's counsel. Plaintiff filed opposition briefs on August 20, 2026. Defendant filed a reply brief on August 20. The Court has carefully reviewed the following: notice of motion (totaling 3 pages); MPA (totaling 12 pages); Declaration of Leigh Ann Rujiters (totaling 4 pages); Declaration of Matthew C. Jaime (totaling 3 pages); Judicial Notice and Exhibits A-C (totaling 23 pages); Opposition to the motion to disqualify (totaling 12 pages); opposition for request for notice (totaling 4 pages); Declaration of Arlen Khachatourians (totaling 28 pages); and Declaration of Anthony Werbin (totaling 5 pages); Reply brief (totaling 11 pages); proofs of services; and the pleadings. II. <u>PROCEDURAL MATTERS</u> A. <u>UNTIMELY OPPOSITION</u> The Court notes procedural violation by the plaintiff. Plaintiff filed opposition papers on August 20, 2026. Per Code of Civil Procedure section 1005(b) opposition papers were to be filed by August 19, 2026. The papers are late. California Rules of Court, rule 3.1300, subdivision (d) states, "No paper may be rejected for filing on the ground that it was untimely submitted for filing. If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must so indicate." Here, the Court balances the totality of circumstances, including judicial economy to avoid the expenditure of any further judicial resources, the court will look past the procedural violations and consider the motion and opposition on its merits. However, the plaintiff is hereby admonished to comply with Rule of Court and Code of Civil Procedure. Any future violations may result in the court's refusal to consider untimely filed papers. B. <u>REQUEST FOR JUDICIAL NOTICE</u> Under Evidence Code section 452(c)-(d), the court may take judicial notice of court records and actions of the state. Here, Plaintiff requests that the court takes judicial notice of three exhibits: Exhibit A is an Order by the Honorable Serena R. Murillo from Los Angeles County Court in the matter of Alba Cochran vs. Costco Wholesale Corporation (BC708124) Court dated October 25, 2021; Exhibit B is an Order by the Honorable Anthony Mohr

from Los Angeles County Court in the matter of Maria Velasco Rodas vs. Costco Wholesale Corporation (20STCV30503) dated February 8, 2023; and Exhibit C is an Order by the Honorable Charles C. Lee from Los Angeles County Court in the matter of Olivia Navarro vs. Costco Wholesale Corporation (21STCV03573) dated February 21, 2023. (Defendant’s Judicial Notice, p. 1; Exhibits A-C).

Plaintiff opposes the defendant’s request for judicial notice on the grounds that Exhibits A-C have no connection to the present case and is thus irrelevant and improper under Evidence Code section 451-452. (Opposition, p. 2). Plaintiff also asserts that the court cannot take judicial notice of hearsay statements. (*Id.*). Plaintiff avers that the defendant improperly seeks judicial notice of facts that are not beyond reasonable dispute as the documents contain factual assertions and conclusions that the plaintiff disputes. (*Id.*, at p. 3).

Defendant in its reply avers that it does not seek to establish a factual basis, but simply seeks the Court to review the terms of the legal reasoning and analysis.

The Court notes that while the plaintiff opposes judicial notice for courts granting the defendant’s motion to disqualify in other cases, the plaintiff also argues in her motion that courts have denied the defendant’s motion to disqualify in five other cases. (Opposition, p. 5; Exhibits 1-5 attached to Declaration of Khachatourians ¶ 11). The plaintiff does not seek judicial notice of those five cases in Exhibits 1-5.

The Court GRANTS the defendant’s request judicial notice to the extent that Exhibits A-C appear to be Orders from cases from Los Angeles County from 2021 – 2023 as identified above. However, the Court does not take judicial notice of the truth of assertions within the court records. (*Dominguez v. Bonta* (2022) 87 Cal. App. 5th 389, 400; *Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375). Further, decisions on whether Mr. Werbin has or has not been disqualified at other hearings are not binding on this court.

III. LEGAL STANDARD

A motion to disqualify an attorney requires balancing two fundamental aspects of representation, including a client’s ability to choose his or her lawyer, and the attorney’s ethical duties of loyalty and confidentiality. An attorney’s duty of confidentiality carries on even after the attorney/client relationship ends. Courts have the inherent power to control the conduct of ministerial officers connected with judicial proceedings, and that includes disqualifying counsel where appropriate. (*People ex rel. Department of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135). The first question in deciding whether disqualification is appropriate is to determine whether the earlier case bears a “substantial relationship” to the latter case. (*Lynn v. George* (2017) 15 Cal.App.5th 630). An attorney owes a duty of confidentiality to his or her client. (Bus. Prof. Code, § 6068, subd. (e)(1)). An attorney also owes a duty of loyalty to a client, such that disqualification is necessary even if there is no risk of a client’s confidences being transmitted to the client’s litigation adversary in an unrelated matter. (*Sheppard, Mullin, Richter & Hampton, LLP v. J-M Manufacturing Co., Inc.* (2018) 6 Cal.5th 59, 84 (*Sheppard*), citing *Flatt v. Superior Court* (1994) 9 Cal.4th 275, 284-285 (*Flatt*)). A conflict of interest that requires an attorney’s disqualification from a matter normally extends to the entire firm to safeguard the clients’ legitimate expectations that their attorneys will protect their confidences. (*People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1139 (*Speedee*), citing *Flatt, supra*, at pp. 283-284; *City and County of San Francisco v. Cobra Solutions, Inc., supra*, at pp. 847-848). Such conflict of interest imputations apply to attorneys who are of counsel. (*Speedee, supra*, at p. 1139 [“Conflicting representations that would disqualify all of a law firm’s attorneys are not more acceptable when an attorney of counsel to the firm creates the conflict”]).

In terms of imputed or vicarious disqualification, the court must analyze a number of factors to see whether there has been an actual violation of the duty of confidentiality or the appearance of one such that to protect the profession’s integrity vicarious imputation is required. The general way to avoid imputation is to do two things:

(1) impose a timely screening protocol; and (2) establish preventive measures to be sure that there is no violation. The burden is on the firm being challenged to establish these points by demonstrating the placement of an ethical wall. The wall may include the following safeguards: physical separation of attorneys; express prohibitions against, and sanctions for, discussing the confidential matters in violation of the protocol; established rules and procedures preventing access to the confidential information and files; procedures to prevent the disqualified attorney from sharing in the profits from the representation; and continuing education in professional responsibility. (*Kirk v. First American Title Ins. Co.* (2010) 183 Cal.App.4th 776). Vicarious disqualification is not automatic. (*California Self-Insurer's Security Fund v. Superior Court* (2018) 19 Cal.App.5th 1065).

IV. ANALYSIS

Here, Defendant Costco seeks to disqualify DTLA on the grounds that Mr. Werbin's prior work at M&K from July 5, 2017 to January 16, 2020 gave him access to confidential and proprietary information pertinent to the instant case and would give the plaintiff an unfair advantage. (Defendant's MPA, at p. 1-2; Declaration of Ruijters, ¶ 9). Defendant emphasizes that while working as an attorney at M&K, Mr. Werbin was lead counsel for Costco on 21 cases and was engaged in every aspect of litigation from developing a strategy or communicating with Costco employees for case preparation, discovery, and deposition, which consisted of attorney-client communications and protective orders. (Declaration of Ruijters, ¶¶ 12-13, and 18). Defense attest that at M&K, Mr. Werbin billed a total of 1,195 hours related to Costco matters, including personal injury matters that are substantially similar to the slip and fall case in the present matter. (*Id.*, ¶¶ 10 and 15). Defense emphasizes that on March 19, 2019, Mr. Werbin attended a California Defense Counsel Conference that Costco held for its panel to discuss defense strategy and tools, and that he sent an email to other attendees sharing his thoughts on defense strategies. (*Id.*, ¶ 14).

Defense argues that an attorney's duties of confidentiality and loyalty to clients endures even after representation ends. (Defense MPA, p. 4; citing *Wutchumna Water Co. v. Bailey*, (1932) 216 Cal. 564). Defendant asserts that the State Bar of California Rules of Professional Conduct, rule 1.9 and California Rules of Professional Conduct requires the attorney to maintain confidence and not reveal information protected from disclosure by Business and Professional Code section 6068 (Defense MPA, p. 5). Defendant emphasizes that a substantial relationship exists as the subjects of the prior and current relationship are linked in some rational manner. (*Id.*, at p. 5; citing *Jessen v. Hartford Casualty Ins. Co.*, (2003) 111 Cal.App.4th 698, 711 (citing *Flatt v. Superior Court*, (2003) 9 Cal.4th 275, 283). Ultimately, Costco's argument is that Mr. Werbin's prior experience working as defense counsel for Costco gave him access to the inner workings of Costco's litigation strategies and Costco's policy. (Defense MPA, at p. 7). Defendant also argues that DTLA's computer screening process is inadequate and that disqualification should be imputed to all members of DTLA. (*Id.*, at p. 8). Costco argues that DTLA has failed to show that Mr. Werbin has and will not be involved with litigation or any communication with attorneys or employees concerning the litigation. (*Id.*, citing *Kirk v. First Am. Title Ins. Co.*, *supra*, 183 Cal.App.4th at 776). DTLA argues that the screening process has to be timely at the outset to prevent any confidences from being disclosed and argues that DTLA only implemented the screening after being disqualified from other cases and that a declaration stating that confidential information was not conveyed is insufficient. (*Id.*; citing *Kirk v. First Am. Title Ins. Co.*, *supra*, 183 Cal.App. at 810). Defendant argues that the plaintiff fails to explain the elements of an ethical wall, including: (1) physical, geographic, and departmental separation of attorneys; (2) prohibitions against and sanctions for discussing confidential matters; (3) established rules and procedures preventing access to confidential information and files; (4) procedure preventing a disqualified attorney from sharing in the profits from the representation; and (5) continuing education in professional responsibility. (Defendant's MPA, at p. 9; citing *Henriksen v. Great American Savings & Loan*, (1992) 11 Cal.App.4th 109, 115-16, n.6).

In opposition, Plaintiff's counsel asserts that Mr. Werbin is not and has never been assigned to work on any aspect of this matter. (Declaration of Khachatourian ¶ 4). DTLA and Mr. Werbin attest that Mr. Werbin has not and will not originate any profits from DTLA's presentation of Plaintiff against Costco. (*Id.*; Declaration of Werbin ¶ 15).

Plaintiff's counsel asserts that Mr. Werbin has no access to any documents or information related to this matter. (Declaration of Khachatourian ¶ 5). DTLA explains that in December 2021 it implemented a change to its software and file management system that prohibits any attorney from accessing a case that he or she is not assigned to. (*Id.*, ¶ 6). As to Defendant Costco, specifically, Plaintiff's counsel asserts that there is a firewall against Mr. Werbin from accessing any case involving Defendant as a party. (*Id.*). Plaintiff emphasizes this screening process was in place approximately two years before Plaintiff Gonzalez retained DTLA. (*Id.*). Plaintiff's counsel attests that a strict compliance policy exists regarding the screening and walking process. (*Id.*, ¶ 7). Plaintiff avers that the system is also protected by the fact that the 45 attorneys and 160 employees are separated by various teams with their own set of attorneys, paralegals, and staff, and no file sharing is permitted. (*Id.*, ¶¶ 8-9). Plaintiff asserts that Defendant Costco has filed boilerplate disqualification motions against Mr. Werbin and DTLA despite that fact Mr. Werbin has not worked at M&K for over six years. (*Id.*, ¶ 12; Declaration of Werbin ¶ 3).

Mr. Werbin attests that since departing M&K, he has not been involved in defense work, including for Costco. (Declaration of Werbin ¶ 6). Mr. Werbin attest that for the approximately 2.5 years he worked as an associate at M&K from July 2017 to January 2020, he handled approximately 20 cases involving Costco, but handled numerous insurance defense matters. (*Id.*, ¶¶ 1, 4, and 5). Plaintiff's counsel states that Mr. Werbin spent 20% of time working on cases involving Costco during his time at M&K. (Declaration of Khachatourian ¶ 10). Mr. Werbin asserts that in the Costco cases he handled, there was no specific direction on handling cases or a concerted efforts, and no confidential or propriety information. (*I* Declaration of Werbin ¶¶ 7 and 9).

Plaintiff's counsel asserts that the defendant fails to establish how Mr. Werbin's limited prior handling of personal injury/premises liability matters nearly seven years ago would be material in this matter, and that defense fails to establish the existence of a substantial relationship necessary to disqualify DTLA. (Opposition, p. 2). Plaintiff emphasizes that Rules of Conduct, rule 3-310(e) prohibits an attorney from requirement a new client who is adverse to a former client, where the attorney obtained confidential information material to the current representation. (*Id.*, at p. 6-7). Mere exposure to confidences does not alone warrant disqualification. (*Id.*, citing *In re Complex Asbestos Litigation* (1991) 232 Cal.App.3d 572). Plaintiff's counsel also emphasizes that former presentation alone does not give rise to a lifetime prohibition. (*Id.*, at p. 7; citing *Banning Ranch Conservancy v. Superior Court* (2011) 193 Cal.App.4th 903, 918). Plaintiff emphasizes that defense fails to establish what "confidential information" Mr. Werbin allegedly gained. (*Id.*, at p. 2 and 9). Plaintiff argues that the motion is a boilerplate motion that Defendant has filed against Mr. Werbin countless cases and is a punitive vendetta, and that disqualifying DTLA would discourage all defense attorney from switching sides. (*Id.*, at p. 2 and 8). Plaintiff asserts that disqualification motions are disfavored and must be weighed with caution because it can be misused and undermine the integrity of the judicial process. (*Id.*, at p. 5-6; citing *Gregori v. Bank of America* (1989) 207 Cal.App.3d 291, 300).

In its reply, Defendant argues that Mr. Werbin represented Costco at least 20 times and did so as recently as 2020. (Reply, p. 1). Defendant emphasizes that in March 2019, Mr. Werbin attended a companywide meeting regarding handling slip and fall protocols. (*Id.*, p. 2). Defendant asserts that DTLA should be vicariously disqualified based on the substantial relationship that Mr. Werbin had regarding Costco. (*Id.*, p. 3). Defense also asserts that DTLA's efforts to wall off Mr. Werbin are inadequate and does not circumvent ethical rules. (*Id.*, at p. 2-5).

The Court notes that substantial relationships often involve lawsuits involving the same transaction, occurrence, or people that an attorney would have received specific factual information while engaged in an earlier case that would have a direct effect on the newer case. The burden of proof is on the former client, here, Defendant Costco to establish he substantial relationship. Defendant Costco is not required to disclose privileged material or provide details that the privileged information could be disclosed. The argument may be that the former attorney gained general information about a former client, also known as a "playbook" relationship," based on the attorney's access

to strategy and policy, which may then give that attorney an unfair advance going against the former client. Essentially, Costco argues that Mr. Werbin’s work at M&K, which included work on approximately 20 cases involving Costco and defense training, provided him with high level of access to Costco’s policies, strategies, and practices regarding persona injury cases, including slip and fall cases. Defendant argues that Mr. Werbin’s access to Costco employees for case preparing, discovery, deposition, and trainings provided him with the inner workings of Costco’s defense litigation. Thus, defense argues that DTLA has access to confidential information through Mr. Werbin and has an unfair advantage in this matter. However, the Court notes that the information obtained must be closely tethered to a specific or actual confidence that has a direct impact on this case. Moreover, DTLA has proffered that Mr. Werbin has not been assigned as counsel on this matter, has no access to any documents or information in the related matter, has not and will not derive profits related to the matter, and that an ethical wall and software program has been implemented to restrict Mr. Werbin from accessing or working on the file. “Additionally, all attorneys at DTLA are instructed of this screening and are advised to maintain strict compliance; it is a well-known firm policy that no cases involving Defendant are assigned or discussed with Mr. Werbin.” (Werbin Decl. ¶¶ 16-18; Khachatourians Decl. ¶¶ 6-9). It has been over six years since Mr. Werbin has left the M&K and engaged in any defense work and has no updated information on Costco. Given the generic information posed based on a playbook type disqualification, the Court does not find that a material relationship test has been met. Defendant’s showing is not specific enough in this context to get through the first prong of analysis that a substantial relationship exists. Further, Mr. Werbin was an associate, who handled approximately 20 cases involving Costco for a 2.5 year period from 2017-2020 and attended a seminar in May of 2019. There is no showing that those specific experiences, tactics, strategies are at issue in this case.

DTLA has not put Mr. Werbin on the case, rather they have walled him off from accessing any files involving Costco. As a result, the issue is not whether he personally should be disqualified, but whether an entire firm must be disqualified. The firm has made a showing that it has taken timely and appropriate measure to screen the compromised attorney from the case. The issue is one of imputed knowledge based on the premise that attorneys and staff talk to one another even though one is not assigned to a particular case. However, imputed or vicarious disqualification is not automatic. (*California Self-Insurer’s Security Fund v. Superior Court*, *supra*, 19 Cal.App.5th at 1065). Here, the ethical wall appears adequate. The screening process was put in around December 2021, prior to this matter being accepted by DTLA. A software and file management system prohibits any attorney from accessing a case that is not assigned to the attorney. Mr. Werbin and the firm are aware that Mr. Werbin is not assigned Costco cases and attorneys are not allowed to discuss Costco cases with him.

V. CONCLUSION

Based on the foregoing, the motion to disqualify is DENIED.

The Court will prepare the Order.

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Calendar Line # 8
Case Name Mid-Century Insurance Company vs Justin Collins
Case No. 25CV477635
Motion to Compel Responses to Request for Production of Documents, Set One and Sanctions <u>I. BACKGROUND</u> This case stems from a subrogation claim arising from April 24, 2024 motor-vehicle accident. On October 15, 2025, Plaintiff Mid-Century Insurance Company (“Mid-Century”) filed a Complaint for damages in the amount of \$41,216.86 against Defendant Justin Collins (“Collins”). Before the Court is Plaintiff Mid-Century’s motion to compel verified responses to request for production of documents (“RFPD”), set one, and sanctions that was filed on May 29, 2026. The motion is accompanied by a proof of service indicating electronic mail service on Defendant Collins’s former attorneys of record, John J. Wasinda. Subsequently, Defendants’ counsel filed a motion to be relieved as counsel indicating an inability to communicate with the defendant and represented that Defendant Collins obtained Nicholas Wilcox as new counsel of record. On July 14, 2026, Elizabeth Meyers appeared as defendant’s counsel and was ordered to provide notice of the next court date, which is this present motions date and the motion to withdraw was granted. The motion to compel is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 19, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). The Court has carefully reviewed the following: notice of motion to compel verified response to RFPD, memorandum of points and authorities in support of the motion; Declaration of Megan A. Sarraill and attached Exhibits A- C (totaling 38 pages); proof of service; and the pleadings. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 2031.020, subdivision (b), a party may make a demand for production of documents and propound interrogatories without leave of court at any time 10 days after the service of the summons on, or appearance by, the party to whom the demand is directed, whichever occurs first. (Code Civ. Proc., § 2031.020, subd. (b); Code Civ. Proc., § 2030.020, subd. (b)). The demand for production of documents is not limited by number, but the request must comply with the formatting requirements in Code of Civil Procedure section 2031.030. The party whom the request is propounded upon is required to respond within 30 days after service of a demand, but the parties are allowed to informally agree to an extension and confirm any such agreement in writing. (Code Civ. Proc., § 2031.060, subd. (a); Code Civ. Proc., § 2030.060, subd. (a); Code Civ. Proc., § 2031.070, subd. (a) - (b); Code Civ. Proc., § 2030.070, subd. (a) - (b)). A party must respond to interrogatories and document requests under oath. (Code Civ. Proc., §§ 2020.010(a), 2030.210(a); 2031.250(a)). An unverified discovery response is treated as no response. (<i>Steele v. Total</i> (1986) 180 Cal.App.3d 545, 549; <i>Appleton v. Sup. Ct.</i> (1988) 206 Cal.App.3d 632, 636-37). In such a case, the propounding party may seek to compel verified responses. (<i>Id.</i>). Code of Civil Procedure section 2015.5 provides that a verification must be signed under penalty of perjury and state the date and place of execution. “[C]ourts do not find compliance with section 2015.5 to be both substantial and sufficient unless all statutory conditions appear

on the face of the declaration in some form.” (*Kulshrestha v. First Union Commercial Corp.* (2004) 33 Cal.4th 601, 612).

If a party fails to serve a timely response to an inspection demand, the party making the demand may move for an order compelling a response to the inspection demand. (Code Civ. Proc., § 2031.300, subd. (b)). A party who fails to provide a timely response waives any objection, including one based on privilege or work product. (Code Civ. Proc., § 2031.300, subd. (a); Code Civ. Proc., § 2030.290, subd. (a)).

III. ANALYSIS

Here, Plaintiff served initial discovery including RFPD, set one on January 21, 2026 on the defendant’s then attorney of record. (Declaration of Sarraill ¶ 3; Exhibit A). On February 23, 2026, the defendant’s counsel requested an extension to serve responses to March 10, 2026, which Plaintiff’s granted. (Exhibit C attached to Declaration of Sarraill). Defendants served unverified responses on March 9, 2026, with a page noting “verification to follow.” (Declaration of Sarraill ¶ 4; Exhibit B). On May 15, 2026, Plaintiff’s counsel submitted an email to defense stating she would seek a motion to compel unless verifications were provided by May 22, 2026. (Exhibit C). No verifications were provided at the time of the filing of the present motion. (Declaration of Sarraill ¶ 6).

Subsequently, in June 2026, Defendants’ counsel filed a motion to be relieved as counsel indicating an inability to communicate with the defendant and that Defendant Collins obtained Nicholas Wilcox as new counsel of record. On July 14, 2026, Elizabeth Meyers appeared and was ordered to provide notice of the next court date, which is this present motions date and the motion to withdraw was granted.

Nearly six months have lapsed since responses RFPD were served without verification, which is required. An unverified discovery response is treated as no response. (*Steele v. Totah, supra*, 180 Cal.App.3d at 549).

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 19, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court GRANTS the motion to compel verifications to the RFPD, set one.

IV. SANCTIONS

The court shall impose a monetary sanction against the party who unsuccessfully makes or opposes a motion to compel further responses to interrogatories or demand for production of documents unless the party subject to the sanction acted with substantial justification or the sanction would otherwise be unjust. (Code of Civ. Proc., §§ 2030.300, subd. (d), 2031.310, subd. (h), 2033.290, subd. (d)).

Plaintiff’s counsel requests sanctions in the amount of \$660.00 because Defendant failed to provide verified response to RFPD that resulted in the instant motion. Plaintiff’s counsel seeks two hours for work expended on this motion and an anticipated hour for appearing on the motion at the hourly rate of \$200.00. Plaintiff’s counsel seeks \$60.00 for costs expended on filing this motion.

The Court notes that no opposition papers were filed, thus no time required for review of an opposition or prepare a reply brief. Further, an appearance on an unopposed motions prospective. The Court GRANTS two hours of time expended on the motion at the requested hourly rate of \$200.00 as well as the \$60.00 in costs for filing fees. Thus, the sanctions is awarded in the total amount of \$460.00.

V. CONCLUSION

Based on the foregoing, the Court GRANTS the motion to compel verified responses to RFPD, set one. The Defendant is to provided verifications to the response to RFPD he served on March 9, 2026 within twenty (20) days from this hearing. The Court GRANTS sanctions against Defendant Collins in the amount of \$460.00. Defendant is to pay the sanctions amount within twenty (20) days from this hearing.

The Court will prepare the formal Order.

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Calendar Line # 9
Case Name Salvador Ortiz vs General Motors LLC
Case No. 25CV480281
Motion for Attorneys’ Fees and Costs <u>I. BACKGROUND</u> This case stems from a Complaint under the Song-Beverly Act that was filed on November 18, 2025 regarding Plaintiff Salvador Agabo Ortiz’s (“Ortiz”) 2025 2011 Chevrolet Equinox EV, vehicle identification number 3GN7DSRP7SS241927 (“Subject Vehicle”) against General Motors, LLC (“GM”). (Complaint). On May 4, 2026, Plaintiff Ortiz accepted Defendant GM’s offer to compromise, under Code of Civil Procedure section 998 to repurchase the Subject Vehicle in the amount of \$56,000.00 inclusive of loan payoff and all actual damages. (Declaration of Bryan M. Geoulla, ¶¶42-44; Exhibit 1). Before the court is Plaintiff’s motion for attorneys’ fees and costs that was filed on July 13, 2026. The motion was accompanied by a proof of service indicating electronic mail service to defense counsel on that same day. Plaintiff seeks an Order awarding her attorneys’ fees in the amount of \$24,549.50 and costs in the amount of \$1,413.01 for a total amount of \$25,962.51. Plaintiffs do not seek an enhancer int his matter and no evidence was proffered regarding a multiplier. Defendant GM filed an opposition papers on August 19, 2026. Plaintiff filed a reply brief on August 24, 2026. The Court has carefully reviewed the following: Plaintiff’s notice of motion and memorandum of points and authorities (totaling 19 pages), Declaration of Bryan M. Geoulla and attached Exhibits 1-3 (totaling 47 pages); Declaration of Ryan Aaron Youbian (totaling 4 pages); Declaration of Michael Josephson (totaling 5 pages); Declaration of Erik Khorovsky (totaling 4 pages); GM’s Opposition (totaling 16 pages); Declaration of Ryan Kay in support of the Opposition and attached Exhibits A-D (totaling 42 pages); Plaintiff’s Reply brief (totaling 11 pages); proofs of services; and the pleadings. <u>II. LEGAL STANDARD</u> A. ATTORNEY’S FEES Pursuant to Code of Civil Procedure section 1033.5(a)(1), a prevailing party is entitled to recover its attorney’s fees when authorized by contract, statute, or law. (<i>See also</i>, Civ. Code § 1717(a)). “A successful party means a prevailing party, and [a party] may be considered prevailing parties for attorney’s fees purposes if they succeed on any significant issue in litigation which achieves some of the benefit the parties sought in bringing suit.” (<i>Bowman v. City of Berkeley</i> (2005) 131 Cal.App.4th 173, 178). The Song-Beverly Act provides, “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code § 1794(d)). Thus, the statute includes a “reasonable attorney’s fees” standard. The attorney bears the burden of proof as to “reasonableness” of any fee claim. (Code Civ. Proc., § 1033.5(c)(5)). This burden requires competent evidence as to the nature and value of the services rendered. (<i>Martino v. Denevi</i> (1986) 182 Cal.App.3d 553, 559). “Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of

attorney fees, even in the absence of detailed time records.” (*Ibid.*). In determining a reasonable attorney fee, the trial court considers the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 36). The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (*Ibid.*) The lodestar amount “may be adjusted by the court based on factors including (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award.” (*Bernardiv. County of Monterey* (2008) 167 Cal.App.4th 1379, 1399, citing *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132). The purpose of any lodestar and the increase thereto “is intended to approximate market-level compensation for such services” and is entirely discretionary. (*Id.*). “The purpose of a fee enhancement is not to reward attorneys for litigating certain kinds of cases, but to fix a reasonable fee in a particular action.” (*Weeks v. Baker & McKenzie* (1998) 63 Cal.App.4th 1128, 1171-72).

“Under the lodestar adjustment methodology, the trial court must initially determine the actual time expended and then ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. Factors to be considered include, but are not limited to, the complexity of the case and procedural demands, the attorney skill exhibited and the results achieved. The prevailing party and fee applicant bears the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount. It follows that if the prevailing party fails to meet this burden, and the court finds the time expended or amount charged is not reasonable under the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” (*Mikhaeilpoor v. BMW of N. Am., LLC* (2020) 48 Cal.App.5th 240, 247 [cleaned up]). “The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom, and this includes the determination of the hourly rate that will be used in the lodestar calculus. In making its calculation, the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (*569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 437, citations omitted).

“‘In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.’ ” (*Lunada Biomedical v Nunez* (2014) 230 Cal.App.4th 459, 488, citing *Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564). The court will exercise its discretion in determining if the Plaintiff’s attorney’s fees request is reasonable by considering the following factors: the nature of litigation, its difficulty, the amount involved, the skill required in handling the matter, the attention given, the success or failure, and the resulting judgment. (*Melnyk v. Robledo* (1976) 64 Cal.App.3d 618, 623).

B. COSTS

The prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.6 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.” (California Rule of Court, rule 3.1700(a); see also *Hydratec, Inc. v. Sun Valley 260 Orchard & Vineyard Co.* (1990) 223 Cal.App.3d 924, 927–928). The Song-Beverly Act allows a prevailing party to recover all expenses, including those not traditionally allowed. (See *Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112).

III. ANALYSIS

A. ATTORNEY'S FEES

Here, Plaintiff seeks 54.8 hours of attorneys' fees in the amount \$24,549.50 for four attorneys at Seven Law Group, APC: (1) Bryan Geoulla; (2) Ryan A. Youabian; (3) Michael Josephson; and (4) Erik Khorovsky with hourly rates ranging from \$350.00 to \$495.00. (Declaration of Geoulla, ¶ 62). Attorney Geoulla seeks 13.4 hours at an hourly rate of \$450.00 for a total amount of \$6,030.00. (*Id.*; Exhibit 2). Additionally, attorney Geoulla seeks 2.8 hours for reviewing oppositions, drafting a reply, and appearing at the hearing at the aforesaid hourly rate and seeks an additional \$1,260.00. Attorney Youabian seeks 19.1 hours at an hourly rate of \$495.00 for a total amount of \$9,454.50. (Declaration of Youabian, ¶¶ 17-19; Exhibit 2). Attorney Josephson seeks 21.4 hours at an hourly rate of \$350.00 for a total amount of \$7,490.00. (Declaration of Josephson, ¶¶ 22-25; Exhibit 2). Attorney Khorovsky seeks 0.9 hours at an hourly rate of \$350.00 for a total amount of \$315.00. (Declaration of Khorovsky, ¶¶ 13-16). Plaintiffs avers that defense intended to litigate this matter from the onset by filing a protective order and noticing the deposition of the plaintiff, and staffing the case with five different attorneys. (Declaration of Geoulla, ¶¶ 37-38). Plaintiff's counsel attests that this matter required extensive analysis of multiple repair records, warranties, discovery and initial disclosures, depositions, discussions regarding 998 offers, post settlement, and legal strategy. (*Id.*, ¶¶ 60-61).

Defendant GM opposes the requested amount of attorney's fees on two main grounds: (1) not reasonably necessary to conduct litigation, excessive, inflated, duplicative; and (2) non-recoverable clerical fees and anticipated time. (Opposition, p. 6-14). Specifically, defense challenges the following: 5.6 hours of excessive time on prelitigation tasks including a client intake in the amount of \$2,752.50; 1.8 hours of templated complaint package and clerical filing tasks in the amount of \$810.00; 1.0 hour of excessive time in reviewing the Answer and service package in the amount of \$450.00; 1.7 hours of preparing initial discourse in the amount of \$765.00; 2.4 hours of excessive time in reviewing GM's document production in the amount of \$1,188.00; 6.2 hours of excessive time spent on tasks related to the deposition of the plaintiff in the amount of \$2,703.00; 13.2 hours of excessive time regarding the deposition of GM's PMK in the amount of \$4,968.00; 3.9 hours of redundant and excessive time on settlement tasks in the amount of \$1,842.00; 2.5 hours of administrative and clerical time for internal communications amounting to \$1,105.00; 3.1 hours of time not related to the commencement or prosecution of this action in the amount of \$1,277.50; and 2.8 hours of anticipated time in the amount of \$1,260.00. (*Id.*, p. 14-15; Declaration of Kay ¶¶ 13-17). In total, Defendant GM seeks to reduce 44.2 hours of attorneys' time and \$19,121.00 in fees. (*Id.*, p. 15). Defense avers that no more than \$5,428.50 in fees should be awarded. (*Id.*, p. 15).

The Court finds the Plaintiff has met its burden of establishing an award of attorneys' fees and GRANTS the request for fees, but DENIES the requested amount of \$24,549.50. The Court reduces a total of 10.5 hours of work expended based on excessive time on client intake and pre-litigation tasks, duplicative and excessive client communication and settlement related tasks; administrative and clerical time for internal communication, other hours not directly related to the prosecution of the case, as well as, 2 hours of anticipated time for an appearance in this matter that is prospective and excessive time for reviewing an opposition. The Court awards 0.8 for review and drafting a Reply at the requested hourly rate of \$450.00 in the amount of \$360.00. The total of 12.5 hours are reduced and \$5,654.42 is reduced. Thus, attorneys' fees are granted in the amount of \$18,895.08.

B. COSTS

Plaintiffs' counsel seeks costs in the amount of \$1,413.01 (Declaration of Geoulla ¶ 72). In support of its request for costs, Plaintiff filed a memorandum of costs on July 13, 2026 (Declaration of Geoulla ¶ 70; Exhibit 3) and submitted invoices in support of expenses Declaration of Geoulla ¶ 71; (Exhibit 4). The costs comprise of filing and motions fees, deposition costs, process service fees, and electronic filing service fees. The memorandum of costs included exhibits with breakdown for costs along with invoices.

Defendant GM opposes costs on the ground that Plaintiff's counsel fails to establish the \$1,413.01 that is requested and alleges that the invoices attached in Exhibit 4 to the Declaration Geoulla amount to \$1,353.01, which is sixty dollars that the amount claimed. (Opposition, at p. 13). Plaintiffs avers in its Reply brief that the sixty dollar discrepancy is accounted for in the filing fees of this present motion as itemized in Exhibit 2.

Defendant also asserts that Plaintiff has not established that expenses were reasonably incurred as required under Code of Civil Procedure sections 1032 and 1033.5. (*Id.*). Defendant also objects to bundling of costs, including deposition costs in the amount of \$80000 unreasonable or non-compensable. (*Id.*, at p. 13-14). Defendant requests that the Court taxes \$940.41 in costs.(*Id.*). Defense avers that no more than \$472.50 in costs should be awarded. (*Id.*, p. 15).

The Court finds that GM has failed to timely file a motion to tax after the Plaintiff submitted a memorandum of costs and DENIES Defendant's request to tax cost.

The Court finds that Plaintiff has established its burden of proving costs. The Court GRANTS the request for costs in the amount of \$1,413.01.

IV. CONCLUSION

Based on the foregoing, the Court GRANTS Plaintiff's request for attorneys' fees in the amount of \$18,895.08. The Court GRANTS's Plaintiff's request for costs in the amount of \$1,413.01. The Court will prepare the formal order.